

Shiv Shankar v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 10 December 2020 · Writ-C No. 21811 of 2020 · **Writ disposed without merits; Executive Engineer to decide the pending Clause 6.5 billing representation expeditiously; if no dispute, restoration only after payment of determined outstanding dues.**

HEADNOTE

A consumer sought mandamus to restore supply while a Clause 6.5 billing representation before the Executive Engineer remained undecided. Without examining merits, the Division Bench disposed of the writ by directing that officer to decide the representation expeditiously in accordance with law, adding that if there was no such dispute the connection could be restored only on payment of outstanding dues after their determination.

FACTUAL SUMMARY

The petitioner sought a mandamus directing restoration of his electricity connection. He said that after this Court's decision in Writ C No. 3243 of 2020 he had moved a Clause 6.5 representation before the Executive Engineer, Dakshinanchal Vidyut Vitran Khand, Kanpur Nagar, disputing the bill; that representation was still pending and supply had not been restored. Counsel for the licensee submitted that restoration could not be considered until outstanding electricity dues were cleared.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

pending-clause-6.5-representation-and-restoration

HOLDING

Without expressing any opinion on merits, a writ seeking restoration of supply is disposed of where the consumer has moved a Clause 6.5 application disputing the bill before the Executive Engineer: that officer is obliged to decide the representation expeditiously in accordance with law. If there is no such dispute, the connection can be restored only upon payment of outstanding dues after their determination. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy The Court declined to decide the billing dispute or order restoration on merits and left the consumer to the pending Clause 6.5 representation, directing only an expeditious decision in accordance with law. ¶ 1

clause-6.5-representation-executive-engineer The Court treated the Executive Engineer as the authority obliged to decide the consumer's Clause 6.5 billing representation. ¶ 1

6.5-representation-as-appropriate-remedy Having recorded that a proper Clause 6.5 application was pending, the Court treated that statutory representation as the appropriate remedy rather than granting mandamus for restoration. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE BILLING DISPUTE AND ENTITLEMENT TO RESTORATION

The Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 1

